

1. "Would the Government consider revising the definition of a "recent project" under the Past Performance Evaluation from five (5) years to eight (8) years prior to issuance of the solicitation?

This request is based on the fact that U.S. military operations in Somalia were substantially reduced beginning in January 2021, followed by an approximate 2 to 3 year pause in DoD project activity in the area before main works resumed. As a result, the current five-year window may exclude otherwise highly relevant and comparable project experience. Expanding the recency period to eight (8) years would provide the Government with a broader and more representative pool of completed projects to evaluate, while still ensuring the experience remains recent and relevant."

- a. The government will revise the definition of a recent project from five to eight years.
2. "The Offeror seeks clarification on the following:
 1. Is it the Government's intent that only Offerors with existing relationships with U.S. Treasury-listed sureties are eligible for award under this solicitation?
 2. Will the Government accept alternative financial assurance mechanisms at the proposal stage, such as:
 - Irrevocable Letters of Credit (ILOC)
 - Bank-issued guarantees meeting the requirements of FAR 52.228-15(d)
 - Other forms of security explicitly identified in the FAR
 3. If such alternatives are acceptable post-award, please clarify whether they may also be used to demonstrate financial capability and responsibility at the proposal stage.

In the interest of promoting full and open competition and aligning with the flexibility provided under FAR 52.228-15, the Offeror respectfully requests that the Government consider:

 - Allowing equivalent financial instruments at the proposal stage, OR
 - Clarifying that such instruments may be accepted as part of the responsibility determination process".
 - a. Alternative financial assurance mechanisms are acceptable in accordance with FAR 52.228-15. Alternative financial assurances may be submitted with an offeror's proposal.
3. In accordance with FAR 28.202(b), sureties not listed on Treasury Department Circular 570 are acceptable for contracts performed in a foreign country if the contracting officer determines that using Treasury-listed sureties is impracticable. Since the contract will be performed in Somalia, we request that you apply this provision and accept bank reference letters or bank guarantees for this solicitation.
 - a. Alternative financial assurance mechanisms are acceptable in accordance with FAR 52.228-15. Alternative financial assurances may be submitted with an offeror's proposal.